Martial Law	National Emergency
3. It is imposed to restore the breakdown of law and order due to any reason.	3. It can be imposed only on three grounds—war, external aggression or armed rebellion.
4. It is imposed in some specific area of the country.	4. It is imposed either in the whole country or in any part of it.
5. It has no specific provision in the Constitution. It is implicit.	5. It has specific and detailed provision in the Constitution. It is explicit.

The Supreme Court held that the declaration of martial law does not *ipso facto* result in the suspension of the writ of *habeas corpus*.

The declaration of a martial law under Article 34 is different from the declaration of a national emergency under Article 352. The differences between the two are summarised in Table 8.7.

EFFECTING CERTAIN FUNDAMENTAL RIGHTS

Article 35 lays down that the power to make laws, to give effect to certain specified fundamental rights shall vest only in the Parliament and not in the state legislatures. This provision ensures that there is uniformity throughout India with regard to the nature of those fundamental rights and punishment for their infringement. In this direction, Article 35 contains the following provisions:

1. The Parliament shall have (and the legislature of a state shall not have) power to make laws with respect to the following matters:

1. Prescribing residence as a condition for certain employments or appointments in a state or union territory or local authority or other authority (Article 16).
2. Empowering courts other than the Supreme Court and the high courts to issue directions, orders and writs of all kinds for the enforcement of fundamental rights (Article 32).
3. Restricting or abrogating the application of Fundamental Rights to members of armed forces, police forces, etc. (Article 33).
4. Indemnifying any government servant or any other person for any act done during the operation of martial law in any area (Article 34).

2. Parliament shall have (and the legislature of a state shall not have) powers to make laws for prescribing punishment for those acts that are declared to be offences under the fundamental rights. These include the following:

1. Untouchability (Article 17).
2. Traffic in human beings and forced labour (Article 23).